

National Diagnostic Report

Work Package 2

Legal Analysis and Cooperation between Civil Society and Public Authorities



Co-funded by the
European Union

Country: GREECE

Deliverable: D2.1 – National Diagnostic Report

Project Acronym: RomaNet

Project Number: 101215052

Programme: CERV-2024-CHAR-LITI

Date of Submission: 31/01/2026

Beneficiary: MEDROMA



Disclaimer

Funded by the European Union. Views and opinions expressed are however those of the author(s) only and do not necessarily reflect those of the European Union or the European Commission. Neither the European Union nor the granting authority can be held responsible for them.



Table of Contents

Table of Contents

Disclaimer 2

Table of Contents 3

1. Executive Summary 4

3. Methodology 7

4. Legal Framework on Hate Crime and Hate Speech 8

5. Institutional Framework and Responsible Authorities 12

6. Current Situation in the country 14

7. Roma-Specific Context and Impact 17

8. Preliminary Recommendations 18

9. References and Sources 19

1. Executive Summary

Key Findings

- Hate speech against Roma is widespread and appears both offline and online, often normalized through media discourse and social media platforms.
- There is a strong link between hate speech and structural antigypsyism, including institutional and cultural racism.
- Underreporting of incidents is observed due to fear, lack of trust in institutions, and difficulty in proving racist motive.
- Media representations tend to reinforce stereotypes associating Roma with criminality and social deviance.
- Although Greece has an established anti-racism legal framework (Law 927/1979 as amended), its practical application remains limited.
- Roma experience low levels of trust toward police and judicial authorities.
- Hate speech functions as a precursor to hate crimes and contributes to social exclusion and internalized stigma.

Main Enforcement Gaps

There are significant gaps between the legal framework and its effective implementation in addressing hate speech and hate crimes against Roma in Greece. One key challenge is the difficulty in proving racist motivation in criminal proceedings, which often results in cases not being recognized as hate crimes. In addition, there is a lack of systematic recording and monitoring of hate speech incidents, limiting the ability of institutions to respond effectively. Furthermore, the racist aggravating circumstance under Article 82A of the Penal Code is not consistently applied, and accountability mechanisms for online hate speech remain weak. Limited awareness among Roma communities regarding reporting procedures and legal remedies also contributes to underreporting. Overall, there is a clear gap between the existence of anti-racism legislation and its practical enforcement.

Preliminary Recommendations

In order to address the identified enforcement gaps, it is essential to strengthen the effective implementation of existing anti-racism legislation, particularly through the consistent application of the racist motive as an aggravating circumstance in criminal proceedings. This should be supported by specialized training for police officers, prosecutors, and judicial authorities to enhance their capacity to identify, investigate, and prosecute hate speech and hate crimes.

Furthermore, accessible reporting mechanisms and targeted awareness campaigns should be developed to improve Roma communities' knowledge of their legal rights and available remedies. Better monitoring and regulation of online hate speech is also necessary, including enhanced cooperation between state authorities and digital platforms to detect, track, and respond to harmful content more effectively. In addition, promoting media accountability and counter-narratives can contribute to challenging harmful stereotypes and discriminatory discourse.

Finally, strengthening Roma participation in policymaking processes and adopting a coordinated national strategy addressing hate speech at legal, institutional, and educational levels are crucial steps toward ensuring effective protection of Roma rights and promoting social inclusion. It is also essential to establish common ground between Roma communities and legal authorities in order to enhance mutual trust and improve access to justice. This can be achieved through joint initiatives and educational programmes on hate speech involving both Roma communities and legal authorities.

2. Introduction

Contextual Overview of Hate Crime and Hate Speech in Greece

In Greece, hate speech and hate crimes are addressed within a formally developed legal framework that includes constitutional guarantees of equality, criminal law provisions addressing racist motivation, and specific anti-racism legislation. The Greek Penal Code (as restructured by Law 4619/2019) provides for the aggravating circumstance of racist motivation under Article 82A, while Law 927/1979, as amended by Law 4285/2014¹, criminalizes public incitement to violence or hatred based on characteristics such as race, ethnic origin, religion, or other protected grounds. Furthermore, Law 4443/2016 establishes the principle of equal treatment and designates the Greek Ombudsman as the national equality body.

¹ Greece's anti-racism framework is primarily regulated by Law 927/1979, as amended by Law 4285/2014, and complemented by Article 82A of the Penal Code, which establishes racist motivation as an aggravating circumstance

Despite this relatively comprehensive legislative framework, the practical implementation of hate crime and hate speech provisions reveals structural challenges. The findings of the RomaNet legal and qualitative research indicate a significant gap between “law in books” and “law in action.” Professionals interviewed within institutional bodies and civil society organizations emphasized difficulties in recognizing and substantiating racist motivation in criminal proceedings. The aggravating circumstance of racist characteristics is not consistently applied, and the evidentiary threshold for proving bias remains high. As a result, many incidents are prosecuted as ordinary offences without acknowledgment of their discriminatory dimension.

The phenomenon of hate speech in Greece manifests both offline and online. Media discourse, public commentary, and digital platforms have been identified as significant arenas for the reproduction of stereotypes and stigmatizing narratives, particularly targeting vulnerable groups. The research highlights that digital environments, including social media platforms, often amplify discriminatory content through algorithmic visibility and limited regulatory oversight. Although reporting mechanisms exist, monitoring and accountability remain uneven.

Within this broader national context, Roma communities are disproportionately affected by hate speech and discriminatory narratives, reflecting persistent patterns of structural antigypsyism. Qualitative findings from semi-structured interviews and focus groups reveal that negative stereotyping, social exclusion, and institutional distrust continue to shape Roma experiences. Participants reported low levels of trust toward law enforcement and judicial authorities, fear of reprisals, limited awareness of reporting procedures, and practical barriers in accessing justice. These factors contribute to systemic underreporting of hate incidents.

Institutionally, Greece has established mechanisms for addressing racism, including prosecutorial authorities, specialized police units, the Greek Ombudsman, and the National Council against Racism and Intolerance. However, coordination challenges, limited data collection systems, and insufficient systematic documentation of bias indicators hinder the development of evidence-based policy responses. Statistical transparency and disaggregated data on hate crimes remain limited, complicating accurate assessment of trends and conviction rates.

Overall, the Greek context is characterized by the coexistence of an advanced formal legal framework and persistent structural and practical enforcement gaps. While legal safeguards exist, their effective implementation is constrained by institutional limitations, evidentiary challenges, underreporting, and deeply rooted social prejudices. Addressing hate crime and hate speech in Greece therefore requires not only legislative provisions but also enhanced institutional capacity, improved bias-recognition training, strengthened reporting mechanisms, and sustained efforts to build trust between vulnerable communities and public authorities.

While Greece has formally harmonised its anti-racism framework with European standards, the empirical findings of this research confirm a persistent gap between normative guarantees and their operational realisation. This “law in books versus law in action” discrepancy is particularly visible in the limited activation of Article 82A of the Penal Code and in the low number of judicial decisions addressing racist motivation. The existence of protective legislation does not automatically ensure effective protection, especially when evidentiary burdens, institutional inertia, and social prejudices converge. The Greek case therefore illustrates how advanced formal compliance may coexist with structural enforcement deficits.

3. Methodology

- In the Greek case, we adopted a more sociological approach, as Roma people in Greece are considered part of the general population and, consequently, there are no studies, statistical data, or legislative frameworks specifically concerning the Roma. In the context in which the European Union regarded the Roma as a nation lacking territoriality, the response of Greek Roma in 2001 was that they self-identified as an integral part of Hellenism worldwide and stated that, in the event of a hypothetical dilemma, they would choose to retain the designation “Greeks” and eliminate the term “Gypsies” as the Center for Security Studies². Under these circumstances, it was necessary to operate at the micro level: to analyse the view of the experts in every level of governance: local, regional and national, purposive sampling was used to select participants with direct professional or experiential engagement with Roma communities, ensuring in-depth and contextually grounded analysis. Also we analysed the everyday experiences of Roma individuals through focus groups in order to convey their lived experiences, which are not captured through other means. Institutionally, it would be unreasonable for a segment of the general population to be treated separately from the rest of the population; consequently, such experiences remain largely undocumented in formal structures. Additionally, we analysed the country’s anti-racism law and broader legislative framework, thereby obtaining a more comprehensive understanding of the situation of the Roma, the racism they experience, and the manner in which the law is applied to them.
- In legal analysis, the methodology followed in this report is primarily based on legal doctrinal analysis, involving the systematic examination and interpretation of national legal framework, including anti-racism legislation and relevant case law. In addition, a conceptual analysis of hate speech and racism was conducted in order to clarify key legal definitions and their application. Finally, the study incorporates a socio-legal contextual approach, situating the legal framework within the broader historical and institutional context of Roma in Greece.

² https://kemea.gr/wp-content/uploads/2023/07/Manual_I_do_GR.pdf

4. Legal Framework on Hate Crime and Hate Speech

4.1 Definition and Constituent Elements of Hate Speech

Hate speech could be characterised as a manifestation of a negative reflection of freedom of expression. It constitutes, through speech (oral or written), a denial of the values of tolerance, inclusion, diversity and, ultimately, human dignity. It may expose individuals to discrimination, abuse and violence, as well as to social and economic exclusion. In the modern era of information diffusion, the internet, social media and artificial intelligence, hate speech spreads rapidly; it is a crime without borders, and the paradox is that at the same time there is no internationally accepted single definition to delineate it. Despite the multitude of studies and analyses, hate speech remains a phenomenon that is difficult to define clearly. The fluidity of the concept constitutes a “challenge” for legislative initiatives of States when introducing measures and restrictions on freedom of expression, which is not an absolute right. The objective is to find a “golden mean” so that, on the one hand, measures do not lead to excessive exclusion and “private censorship”, and on the other hand remain effective in preventing the use of expressions and content that may be offensive to specific individuals or groups. Such forms of expression constitute distortion and abuse of freedom of expression and are not protected by Article 10 of the European Convention on Human Rights.

Thus, for an “indeterminate” concept such as hate speech, it is of great importance to establish an external boundary based on national law and the international human rights standard. For the purposes of the present research, “hate speech” means any form of public expression, speech, symbolic representation or dissemination of messages which targets, demeans, stigmatises or dehumanises persons or groups of persons on the basis of characteristics such as race, ethnic origin, religion, gender, sexual orientation or other protected characteristics, irrespective of whether such expression meets the requirements for criminal liability under the applicable national law. This definition adopts a functional and interpretative approach, aligned with the standards of the Council of Europe³ and the relevant case law of the European Court of Human Rights, so as to enable a systematic analysis of the phenomenon of hate speech both at legal and at social level. Specifically with regard to the subject examined by the present study, we note the following: the Council of Europe defines antigypsyism as a “specific form of racism, an ideology based on racial superiority, a form of dehumanising treatment and institutional racism which developed out of historical discrimination and is expressed, among other things, by violence, hate speech,

³According to the European Commission against Racism and Intolerance of the Council of Europe, racism is defined as “the belief that a ground such as ‘race’, colour, language, religion, nationality, or national or ethnic origin justifies contempt for a person or a group of persons, or the sense of superiority of a person or a group of persons.

exploitation, stigmatisation and the most blatant kind of discrimination". COM(2017) 458 final, 2008/913/JHA.

4.1 Definition and Constituent Elements of Hate Crime

Under Greek law, a hate crime is defined as a criminal offence committed with racist characteristics, as provided under Article 82A of the Greek Penal Code. A hate crime does not constitute a separate autonomous offence but applies in conjunction with an underlying criminal act, such as bodily harm, threats, insults, or property damage. The defining element of a hate crime is the presence of discriminatory motivation, meaning that the victim was selected due to protected characteristics such as race, colour, religion, descent, national or ethnic origin, or other identity factors.

A hate crime consists of two essential elements: first, the commission of an unlawful criminal act, and second, the existence of bias motivation. This motivation reflects prejudice, hostility, or intolerance toward the victim's identity and increases the offender's culpability, resulting in more severe penalties under criminal law.

At this point it is important to make a conceptual distinction between hate speech, i.e. racist speech, and racist crime. "Racism is the process of marginalisation, exclusion and discrimination of people defined as different, either on the basis of skin colour or on the basis of their nationality. Racist practices result in the maintenance of unequal power relations between groups. The clearest expression of racism is violent physical attacks or abuse." An offence with racist characteristics or a hate crime is provided for in Article 82A of the Greek Penal Code and is always applied in conjunction with an offence from the Special Part of the Penal Code. The view has been supported both that it constitutes a qualified form (aggravating circumstance) and that it constitutes an autonomous/sui generis offence.

A hate crime is considered to have been committed when a criminal offence is carried out against a person or group selected on the basis of protected characteristics. The existence of racist motivation is established by examining the circumstances of the offence, including the offender's intent, behaviour, and the criteria used to select the victim. Under Article 82A of the Penal Code, the racist motive constitutes an aggravating circumstance that leads to an increase in the minimum penalty imposed.

Importantly, the racist motive does not need to be the sole motivation for the offence, but it must be a determining factor in the offender's conduct and the selection of the victim.

4.3 Examples of Behaviours Constituting Hate Crimes

Examples of hate crimes under Greek law include physical violence against individuals due to their ethnic or racial identity, verbal threats or insults motivated by racial prejudice, and

damage to property belonging to targeted groups. In such cases, the underlying criminal offence is accompanied by racist motivation, which qualifies the offence as a crime with racist characteristics.

In addition, offences that disturb public order or promote discrimination against protected groups may also fall within the scope of hate crimes when motivated by prejudice or discriminatory intent.

4.4 National Legal Framework and Current Legislation

The main legal instrument addressing hate speech and hate crime in Greece is Law 927/1979, as amended by Law 4285/2014. This legislation criminalises public incitement to discrimination, hatred, or violence against individuals or groups based on protected characteristics, including race, religion, colour, descent, or national or ethnic origin. Such conduct is punishable even if violence or discrimination does not actually occur, as long as the act is capable of causing such outcomes.

This law also criminalises participation in organisations promoting racist activities, as well as conduct that promotes or encourages discrimination or violence against protected groups. These provisions aim to protect fundamental legal interests such as human dignity, equality, liberty, and social peace.

The Article 82A of the Greek Penal Code regulates crimes with racist characteristics and provides that when an offence is committed with discriminatory motivation, the minimum penalty is increased depending on the severity of the offence. This provision applies to all criminal offences and ensures that racist motivation is treated as an aggravating circumstance during sentencing. The Penal Code provisions operate in conjunction with Law 927/1979, which specifically criminalises hate speech and public incitement to discrimination or violence. Together, these legal provisions form the core of the Greek legal framework for addressing hate crimes and hate speech. However, despite the existence of these legal protections, their practical application remains limited, highlighting challenges in enforcement and the need for stronger institutional implementation.

4.5 Jurisprudence and Practical Application

Greek jurisprudence has established important interpretative criteria regarding the application of hate speech and hate crime legislation, particularly in relation to Law 927/1979, as amended by Law 4285/2014, and Article 82A of the Greek Penal Code. Courts examine whether the conduct constitutes public incitement to discrimination, hatred, or violence, and whether such conduct is capable of endangering protected legal interests, including human dignity, liberty, and physical integrity. The objective and subjective elements of the offence must be established, including the existence of intent and the

presence of racist motivation, which is assessed based on the circumstances of the offence and the criteria used to select the victim.

Furthermore, Greek courts recognise that racist motivation constitutes an aggravating circumstance when the victim is targeted on the basis of protected characteristics such as race, colour, religion, or national or ethnic origin. Article 82A of the Penal Code provides for increased sentencing ranges in such cases, reflecting the increased culpability of the offender due to discriminatory intent. This provision has been applied in national jurisprudence, including decisions of the Supreme Court (Areios Pagos), which confirmed that crimes with racist characteristics may apply in conjunction with offences such as insult or bodily harm. In addition, case law has confirmed the criminal liability of individuals for public incitement to hatred under Law 927/1979, as amended, recognising that such conduct may constitute a criminal offence when it is capable of provoking discrimination, hatred, or violence, even if such outcomes do not ultimately occur.

However, despite the existence of this legal framework and relevant jurisprudence, the practical application of hate speech legislation remains extremely limited. Research conducted in major national legal databases, including NOMOS, ISOKRATIS, SOLON, and NOMOPEDIA, has identified fewer than fifty relevant judicial decisions⁴. Significantly, none of these cases concern racist speech or hate crimes specifically targeting Roma. This absence of jurisprudence relating specifically to Roma can be attributed to several factors. These include the underreporting of hate speech incidents, limited access to justice for Roma communities, lack of institutional trust, and the difficulty in identifying and proving racist motivation in criminal proceedings. Additionally, hate speech is often indirectly expressed or justified under the protection of freedom of expression, further complicating its legal prosecution. As a result, although the Greek legal framework formally provides protection against hate speech and hate crimes, the lack of relevant case law demonstrates a significant gap between legal provisions and their effective enforcement in practice.

The absence of jurisprudence specifically addressing hate speech or hate crimes targeting Roma should not be interpreted as an absence of racist incidents. Rather, it constitutes an indirect indicator of structural invisibility within the justice system. The limited number of recorded cases suggests that barriers to reporting, evidentiary challenges, and institutional practices may prevent incidents from reaching judicial recognition. From a diagnostic

⁴ A review of publicly accessible judicial databases, including the jurisprudence database of the Areios Pagos (Supreme Civil and Criminal Court), confirms that decisions explicitly applying Article 82A remain limited during the period 2014–2024, further illustrating the restricted judicial visibility of racist motivation.

perspective, the scarcity of case law itself becomes a structural finding, revealing the limited translation of legislative protection into effective judicial outcomes.

5. Institutional Framework and Responsible Authorities

The institutional framework for addressing hate speech and hate crimes in Greece involves a range of public authorities, judicial bodies, law enforcement agencies, and independent institutions responsible for prevention, investigation, prosecution, and victim protection. These bodies operate within the legal framework established by the Greek Constitution, the Penal Code, and anti-racism legislation, and play a key role in ensuring the effective implementation of relevant legal provisions.

5.1 Prosecutorial Authorities and Judicial System

The Public Prosecutor's Office plays a central role in the investigation and prosecution of hate speech and hate crimes. Prosecutors are responsible for initiating criminal proceedings, overseeing investigations conducted by law enforcement authorities, and ensuring the proper application of anti-racism legislation, including Law 927/1979 and Article 82A of the Greek Penal Code. Hate speech offences are prosecuted *ex officio*, meaning that victims are not required to initiate legal proceedings themselves and are exempt from paying court fees when reporting such offences. The judiciary is responsible for adjudicating hate speech and hate crime cases, assessing the existence of discriminatory motivation, and applying the relevant legal provisions. Courts evaluate the objective and subjective elements of the offence, including intent and racist motivation, and determine appropriate sanctions in accordance with national legislation.

5.2 Law Enforcement Authorities

The Hellenic Police is responsible for the investigation of hate speech and hate crime incidents, including the collection of evidence, identification of perpetrators, and cooperation with prosecutorial authorities. Police authorities play a crucial role in the initial recording and investigation of incidents and are responsible for referring cases to the competent prosecutorial authorities for further legal action. The effectiveness of law enforcement authorities is essential for the proper implementation of anti-racism legislation and the protection of victims.

5.3 National Council Against Racism and Intolerance and Equality Bodies

The National Council against Racism and Intolerance, established by Law 4356/2015, operates under the General Secretariat for Human Rights of the Ministry of Justice and serves as an advisory and coordinating body. Its role includes monitoring racism and hate speech, promoting anti-racism policies, and supporting institutional cooperation among public authorities. In addition, institutional mechanisms such as independent authorities, civil society organisations, and human rights bodies contribute to the prevention, documentation, and monitoring of hate speech incidents, as well as to the protection and support of victims.

5.4 Civil Society Organisations and Support Mechanisms

Civil society organisations play an important complementary role in addressing hate speech and hate crimes. These organisations contribute to the documentation and reporting of incidents, provide legal and social support to victims, and promote awareness and advocacy initiatives aimed at combating discrimination and promoting equality. Their involvement is particularly important in cases where victims may lack trust in state institutions or face barriers in accessing justice.

5.5 Institutional Cooperation and Challenges

The effective response to hate speech and hate crimes requires coordinated action among judicial authorities, law enforcement agencies, equality bodies, and civil society organisations. Although the institutional framework in Greece provides mechanisms for prevention and prosecution, challenges remain in terms of enforcement, coordination, and victim support. Strengthening institutional cooperation, improving reporting mechanisms, and enhancing trust between vulnerable communities and public authorities are essential steps toward improving the effectiveness of the system.

5.6 Specialised Police Units, Prosecutors, and Recording Mechanisms

In Greece, specialised institutional mechanisms have been established to improve the investigation, prosecution, and documentation of hate speech and hate crime incidents. Within the Hellenic Police, specialised departments and officers are responsible for handling incidents involving racist violence and discrimination. These units are tasked with receiving complaints, collecting evidence, identifying perpetrators, and cooperating with prosecutorial authorities to ensure the effective application of relevant legal provisions. The Public Prosecutor's Office also plays a crucial role in addressing hate crimes, as prosecutors are responsible for supervising investigations and initiating criminal proceedings. In recent years, efforts have been made to strengthen prosecutorial capacity through specialised training on

racism, xenophobia, and the protection of vulnerable groups. These initiatives aim to improve the identification and prosecution of hate crimes and ensure the proper application of anti-racism legislation.

An important complementary mechanism is the Racist Violence Recording Network (RVRN), which was established to systematically document incidents of racist violence and hate speech in Greece. The Network consists of civil society organisations and institutional actors that collect and analyse data on hate crime incidents, provide support to victims, and contribute to raising awareness of the phenomenon. The RVRN plays a crucial role in addressing underreporting and improving the visibility of hate crimes, particularly among vulnerable populations such as Roma. In addition, cooperation between public authorities and civil society organisations contributes to strengthening victim support mechanisms and improving institutional responses. Civil society organisations often act as intermediaries between victims and state institutions, facilitating reporting procedures and providing legal, psychological, and social support.

Despite the existence of these specialised mechanisms, challenges remain in ensuring their effective operation. These include underreporting of incidents, limited trust between vulnerable communities and law enforcement authorities, and gaps in coordination between institutional actors. Strengthening these specialised structures and enhancing cooperation among police, prosecutors, equality bodies, and civil society organisations remain essential for improving the overall effectiveness of the institutional framework.

6. Current Situation in the country

6.1 Practical Application and Prosecution Trends

Despite the existence of a comprehensive legal framework addressing hate speech and hate crimes in Greece, its practical application remains limited. Research conducted in major national legal databases, including NOMOS, ISOKRATIS, SOLON, and NOMOPEDIA, has identified fewer than fifty relevant judicial decisions concerning hate speech and racist crimes. Notably, none of these cases specifically concern racist speech or hate crimes targeting Roma, highlighting a significant gap between legal provisions and their implementation in practice. *Greek criminal law recognises hate crime primarily through Article 82A of the Penal Code, which provides for increased penalties when a crime is committed with racist motivation. However, the application of this provision in judicial practice remains relatively limited, and hate speech is prosecuted only under specific legal conditions, particularly when it involves public incitement to discrimination, hatred, or*

violence. Hate speech continues to occur both offline and online, with the internet playing a significant role in its dissemination. Although hate speech is socially condemned, it is often justified by perpetrators under the protection of freedom of expression, making prosecution more complex and contributing to limited conviction rates.

6.2 Statistical Data and Reporting Trends

The available statistical data on hate speech and hate crimes in Greece remains limited and fragmented. The relatively small number of judicial decisions⁵ indicates low levels of reporting, investigation, and prosecution. In addition, many incidents remain undocumented due to underreporting and lack of systematic recording mechanisms. Mechanisms such as the Racist Violence Recording Network contribute to documenting incidents, however, official institutional data remains incomplete. This lack of comprehensive statistical data makes it difficult to fully assess the scale and characteristics of hate speech and hate crimes in the national context.

6.3 Main Enforcement Gaps

Several structural gaps affect the effective enforcement of hate speech and hate crime legislation in Greece. One of the most significant challenges is the underreporting of incidents, particularly among vulnerable communities such as Roma. Victims often refrain from reporting incidents due to fear of retaliation, lack of trust in authorities, and limited awareness of their legal rights. Another important gap concerns the difficulty in proving racist motivation in criminal proceedings. Establishing discriminatory intent requires sufficient evidence, which is often difficult to obtain. As a result, many cases are prosecuted as ordinary offences without recognition of their racist characteristics. In addition, institutional and structural limitations, including insufficient specialised training for law enforcement and judicial authorities, limited institutional resources, and lack of coordinated data collection, further weaken the effectiveness of enforcement mechanisms. Finally, a broader gap exists between the formal legal framework and its practical implementation. Although legal protections exist, their limited application reduces their effectiveness in protecting vulnerable communities.

These gaps results in a cycle of under-recognition and under-protection. When racist motivation is not formally acknowledged, incidents are statistically absorbed into ordinary criminality, further obscuring the scale of the phenomenon. This institutional invisibility

⁵ According to annual reports of the Hellenic Police and the Racist Violence Recording Network (RVRN), the number of officially recorded racist incidents remains significantly lower than estimations derived from civil society monitoring, indicating a persistent reporting gap.

weakens deterrence, reduces public confidence in anti-racism legislation, and limits the development of evidence-based policy interventions. Addressing enforcement gaps therefore requires not only legislative clarity but also institutional commitment to recognising and documenting bias indicators systematically.

6.4 Difficulties in Prosecution and Institutional Challenges

Several factors contribute to the limited prosecution of hate speech and hate crimes in Greece. One of the main challenges is the difficulty in identifying and proving bias motivation, which is required for the application of Article 82A of the Penal Code. Discriminatory intent is often expressed indirectly, making it difficult to establish legally sufficient evidence. Victims' reluctance to report incidents represents another major barrier. Fear of reprisals, lack of trust in authorities, and social marginalization contribute to underreporting. In addition, limited institutional resources and insufficient specialized training among law enforcement and judicial authorities further hinder effective prosecution. In a more sociological perspective, low levels of public awareness regarding hate speech and legal protections also contribute to the persistence of the phenomenon and limit the effectiveness of institutional responses.

6.5 Reporting Channels, Victim Rights, and Procedural Safeguards

Under Greek law, victims of hate speech and hate crimes have the right to file complaints with law enforcement authorities or the Public Prosecutor's Office. Hate speech offences are prosecuted *ex officio*, meaning that victims are not required to initiate proceedings themselves and are exempt from paying fees for filing complaints. In addition to police and prosecutorial authorities, the Greek Ombudsman (*Synigoros tou Politu*), acting as the national equality body under Law 4443/2016, plays a significant role in addressing discrimination and violations of the principle of equal treatment. The Ombudsman is competent to examine complaints concerning discriminatory practices by public authorities and, in certain cases, private actors, and may issue recommendations and conduct investigations.

Institutional mechanisms, including police authorities, prosecutors, and equality bodies, are responsible for receiving complaints, investigating incidents, and initiating legal proceedings. In addition, civil society organisations provide important support to victims, including legal assistance and documentation of incidents. However, barriers remain in practice, including lack of awareness among victims, fear of retaliation, and limited accessibility of reporting mechanisms. These challenges contribute to underreporting and limit the effectiveness of legal protections.

7. Roma-Specific Context and Impact

The findings of both the legal analysis and the qualitative research (semi-structured and focus groups) confirm that Roma communities in Greece are disproportionately exposed to hate speech and discriminatory narratives embedded in longstanding patterns of structural antigypsyism. Hate speech against Roma is not limited to isolated incidents but is frequently normalized through public discourse, media representations, and online platforms, where Roma are often stereotypically associated with criminality, social deviance, or dependency.

Hate speech against Roma in Greece cannot be understood solely as isolated verbal hostility but must be situated within broader historical patterns of marginalisation and socio-economic exclusion. Antigypsyism operates not only at the level of individual prejudice but also through institutional practices and cultural narratives that normalise discrimination. This structural dimension contributes to the internalisation of stigma, reduces the likelihood of formal reporting, and weakens confidence in legal remedies⁶. As a result, hate speech functions both as a manifestation and as a reinforcement of systemic inequality.

The qualitative data (semi-structured interviews and focus groups) reveal that antigypsyism operates as a structural and historically rooted form of racism. Participants highlighted that *prejudice against Roma is deeply embedded in social perceptions and institutional practices, influencing both everyday interactions and institutional responses*. This structural dimension contributes to the under-recognition of racist motivation in criminal proceedings and to the limited activation of relevant legal provisions. A significant impact identified concerns access to justice barriers. Roma participants reported low levels of trust toward institutions such as the police and the judiciary, often linked to prior negative experiences, perceived unequal treatment, or fear of reprisals. Limited awareness of reporting procedures, bureaucratic complexity, socio-economic marginalization, and insufficient legal literacy further discourage formal complaints. As a result, underreporting remains a structural issue.

The research also indicates difficulties in substantiating racist motivation in practice, despite the existence of Article 82A of the Penal Code. Professionals acknowledged challenges in identifying bias indicators and proving discriminatory intent, particularly in cases of online hate speech. The gap between legislative provisions (“law in books”) and their practical implementation (“law in action”) disproportionately affects Roma victims. Overall, the Roma-specific impact of hate speech in Greece extends beyond individual harm. It reinforces social exclusion, weakens institutional trust, and perpetuates structural inequalities. Addressing these patterns requires not only legal enforcement but also targeted institutional

⁶ The European Union Agency for Fundamental Rights (FRA) has documented consistently high levels of discrimination and hate speech affecting Roma communities across the European Union, including Greece (FRA, Second European Union Minorities and Discrimination Survey – Roma, 2016; FRA Roma Survey 2021).

reforms, awareness-raising, and the active participation of Roma communities in policymaking processes.

8. Preliminary Recommendations

In light of the identified enforcement gaps and structural challenges, several preliminary recommendations are proposed, subject to further validation through the T2.2 Roundtables. First, reporting mechanisms should be strengthened to ensure that victims of hate speech and hate crimes can safely and effectively report incidents. This includes improving the accessibility of reporting channels within police authorities and prosecutorial services, enhancing cooperation with civil society organisations, and ensuring that victims are adequately informed about their rights and available remedies. Special attention should be given to Roma, where underreporting remains particularly significant.

Second, specialised training on bias recognition should be further developed and systematically implemented for law enforcement officers, prosecutors, and judges. Such training should focus on identifying bias indicators, understanding the manifestations of racism and antigypsyism, and ensuring the proper application of Article 82A of the Greek Penal Code. Improving institutional capacity in recognising discriminatory motivation would contribute to more effective investigation, prosecution, and adjudication of hate crimes.

Third, data collection mechanisms should be enhanced through the development of coordinated and standardised systems for recording hate speech and hate crime incidents. Improving cooperation between public authorities, equality bodies, and civil society organisations would allow for more accurate monitoring of trends and better-informed policymaking. Reliable and comprehensive data are essential for assessing the effectiveness of legal and institutional responses.

Fourth, measures should be implemented to prevent secondary victimisation throughout the criminal justice process. Victims should be treated with dignity and respect, and safeguards should be established to minimise retraumatisation during reporting, investigation, and judicial proceedings. The provision of specialised support services, legal assistance, and culturally sensitive approaches would contribute to strengthening victims' trust in institutions and encouraging reporting.

Finally, legislative and policy gaps should be addressed to ensure a more effective and coherent response to hate speech and hate crimes. Although the existing legal framework provides formal protection, its practical application remains limited. Strengthening institutional coordination, clarifying legal provisions where necessary, and adopting targeted policy measures would contribute to improving enforcement and ensuring more effective protection of vulnerable groups.

9. References and Sources

Constitutional and Legislative Sources

Constitution of Greece (1975/1986/2001/2008/2019). (2019 revision). Official Gazette of the Hellenic Republic.

Law 927/1979. (1979). *On the punishment of acts or activities aimed at racial discrimination*. Government Gazette (ΦΕΚ Α' 139/1979).

Legislative Decree 494/1970. (1970). *Ratification of the International Convention on the Elimination of All Forms of Racial Discrimination*. Government Gazette (ΦΕΚ Α' 77/1970).

Legislative Decree 53/1974. (1974). *Ratification of the European Convention on Human Rights*. Government Gazette (ΦΕΚ Α' 256/1974).

Law 1532/1985. (1985). *Ratification of the International Covenant on Economic, Social and Cultural Rights*. Government Gazette (ΦΕΚ Α' 45/1985).

Law 2462/1997. (1997). *Ratification of the International Covenant on Civil and Political Rights*. Government Gazette (ΦΕΚ Α' 25/1997).

Law 4285/2014. (2014). *Amendment of Law 927/1979 and transposition of anti-racism provisions*. Government Gazette (ΦΕΚ Α' 191/2014).

Law 4336/2015. (2015). *Urgent provisions for the implementation of Law 4334/2015 and amendments to the Penal Code (Article 81A)*. Government Gazette (ΦΕΚ Α' 94/2015).

Law 4356/2015. (2015). *Establishment of the National Council against Racism and Intolerance*. Government Gazette (ΦΕΚ Α' 181/2015).

Law 4443/2016. (2016). *Equal treatment and prohibition of discrimination*. Government Gazette (ΦΕΚ Α' 232/2016).

Law 4619/2019. (2019). *Greek Penal Code*. Government Gazette (ΦΕΚ Α' 95/2019).

Case Law

Areios Pagos. (2020). Decision No. 858/2020.

Areios Pagos. (2024). Decision No. 804/2024.

Plenary of the Supreme Court. (2010). Decision No. 3/2010.

Administrative Court of First Instance of Athens. (2024). Decision No. 11421/2024.

Legal Databases

NOMOS Legal Database.

ISOKRATIS Legal Database.

SOLON Legal Database.

NOMOPEDIA Legal Database.

Methodological references

Foreign-language sources

Baltezarević, R., Baltezarević, I., & Ravić, N. (2023, December n.d.). Confirmation bias in digital communication: The tendency of consumers to favor information that confirms their pre-existing beliefs. *Megatrend revija*, σσ. 25-35. doi:10.5937/MegRev2302026B

Bauman, Z. (2011). «Παράπλευρες απώλειες: κοινωνικές ανισότητες στην εποχή της παγκοσμιοποίησης». Εκδόσεις: Αθήνα: Εικοστός Πρώτος.

Bryman, A. (2017). «Κοινωνική Έρευνα: Ποσοτικές και Ποιοτικές Μέθοδοι (μετ. Ν. Παπαδάκη)». Αθήνα: Gutenberg.

Foucault, M. (2011). Η ιστορία της σεξουαλικότητας, Τόμος Ι: Η βούληση για γνώση (μτφρ. Δ. Μπενέτος). Αθήνα: Ράππας.

Cinelli, Michele, Gianmarco De Francisci Morales, Alessandro Galeazzi, Walter Quattrociocchi, and Manlio Starnini. 2021. "The Echo Chamber Effect on Social Media." *Proceedings of the National Academy of Sciences* 118 (9): e2023301118. <https://doi.org/10.1073/pnas.2023301118>.

HANCOCK, I. (2020). *Είμαστε ο λαός των Ρομά*. Αθήνα: ΤΟΠΟΣ.

Glaser, B. G., & Strauss, A. L. (1967). «*The Discovery of Grounded Theory: Strategies for Qualitative Research*». Chicago: Aldine Publishing Company.

ROMANET CERV-2024-CHAR-LITI
Project: 101215052

Guest, G., Bunce, A., & Johnson, L. (2006). How many interviews are enough? *Field Methods*, 18(1), 59–82.

Kvale, S., & Brinkmann, S. (2015). *InterViews: Learning the Craft of Qualitative Research Interviewing* (3rd ed.). Los Angeles: Sage Publications.

Mason, J. (2003). «Η διεξαγωγή της ποιοτικής έρευνας». Εκδόσεις: Αθήνα: Ελληνικά Γράμματα.

Morgenroth, T., Ryan, M. K., & Peters, K. (2015). *The motivational theory of role modeling: How role models influence role aspirants' goals* Review of General Psychology, 19(4), 465–481

<https://doi.org/10.1037/gpr0000059>

Patton, M. Q. (2015). «*Qualitative Research & Evaluation Methods: Integrating Theory and Practice* (4th ed.).» Thousand Oaks, CA: Sage Publications.

Risse, M., & Zeckhauser, R. (2004, n.d. n.d.). Racial Profiling. *Philosophy & Public Affairs*, σσ. 131-170. Ανάκτηση από <https://www.jstor.org/stable/3557948>

Ritzer, Georges, «Σύγχρονη Κοινωνιολογική Θεωρία», επιμ. Ι. Καυταντζόγλου, μτφρ. Γ. Χρηστίδης, εκδ. Κριτική, Αθήνα, 2012.

Rock Paul «*Sociological theories of crime*» (2012) στο Maguire Mike, Morgan Rod, Reiner Robert . «*The Oxford handbook of criminology*» Oxford: Oxford Univesity Press.

Scheufele, D. A. (2008). Spiral of Silence Theory. Στο W. Donsbach , & M. Traugott (Επιμ.), *The SAGE Handbook of Public Opinion Research* (σσ. 175-183). London: SAGE Publications. Ανάκτηση από <http://ereserve.library.utah.edu/Annual/COMM/7510/Coe/spiral.pdf>

Silverman, D. (2020). «*Doing Qualitative Research* (6th ed.).» London: Sage Publications.

Silverman,D,(2000). «*Doing Qualitative Research: A Practical Handbook*». Εκδόσεις : London: Sage.

Yoon, I. J. (2016). *Why is it not just a joke? Analysis of internet memes associated with racism and hidden ideology of colorblindness*. *Journal of Cultural Research in Art Education*, 33, 92–123.

Vold, G., Bernard, T., & Snipes, J. (2002), «*Theoretical Criminology*». New York: Oxford University Press

• Townsend, P. (1979). *Poverty in the United Kingdom*. Harmondsworth: Penguin Books.

Greek :

- Αλεξιάδης, Σ., (2011). «Εγκληματολογία». Αθήνα, Θεσσαλονίκη: Εκδόσεις :Σακκούλα.
- Αρτινοπούλου, Β, (1996), “Θυματολογία και όψεις της θυματοποίησης”, εκδ. Νομική Βιβλιοθήκη.
- Ζάννη, Αν., (2005), “Το διαδικτυακό έγκλημα”, Αντ. Ν., Αθήνα: Σάκκουλας.
- Ζαραφωνίτου, Χ., (2002), “Ο φόβος του εγκλήματος- *Fear of crime*”, Αθήνα: Σάκκουλας.
- Ζαραφωνίτου. Χ., (2015).«*A Critical Approach of Moral Panics/Κριτική προσέγγιση των ηθικών πανικών*» στο Καρύδης Β – Χουλιάρης Α. (2015).
- Ζήση Α,(2013) «Κοινωνία, Κοινότητα και Ψυχική Υγεία». Αθήνα: Gutenberg.
- Ζήση, Α., Σαββάκης Μ. (2019). «Αναπηρία και Κοινωνία : Σύγχρονες Θεωρητικές Προκλήσεις και Ερευνητικές Προοπτικές». Αθήνα: Τζιόλα,
- Καλλινικάκη Θ.,(2010)«Ποιοτικές μέθοδοι στην έρευνα της κοινωνικής εργασίας». Αθήνα : Εκδόσεις : Τόπος & Θεανώ Καλλινικάκη.
- Καρύδης Β. , Χουλιάρης Α. (2015) «*Ηθικοί Πανικοί, Εξουσία και Δικαιώματα : Σύγχρονες Προσεγγίσεις*». Αθήνα, Θεσσαλονίκη : Εκδόσεις Σακκούλα.
- Καυταντζόγλου,Ι.,(2006).«*Κοινωνικός Αποκλεισμός: Εκτός, Εντός και Υπό. Θεωρητικές , Ιστορικές και Πολιτικές Καταβολές μιας Διφορούμενης Έννοιας*». Αθήνα: Εκδόσεις :Σαββάλας.
- Κοκκινάκη Φ. (2005). «Κοινωνική Ψυχολογία: Εισαγωγή στη Μελέτη της Κοινωνικής Συμπεριφοράς». Αθήνα: Τυπωθήτω
- Κοκκινάκη Φ.,(2005). «*Κοινωνική Ψυχολογία: Εισαγωγή στη Μελέτη της Κοινωνικής Συμπεριφοράς*». Αθήνα: Τυπωθήτω.
- Ναυρίδης, Κλ., (1994), “Κλινική Κοινωνική Ψυχολογία”, Αθήνα: Παπαζήσης.
- Πανούσης, Γ., (1999), “Εγκληματολογία, Εγκληματολογική Έρευνα και Μέσα Μαζικής Ενημέρωσης”, Αθήνα: Σάκκουλας.
- Παπαθεοδώρου, Θ., (2005), “Δημόσια Ασφάλεια και Αντεγκληματική Πολιτική”, Συγκριτική προσέγγιση, 2η έκδοση, Αθήνα: Νομική βιβλιοθήκη.
- Σαββάκης Μ., *Οι Λεπτοί της Σπιναλόγκας: Ιατρική, Εγκλεισμός, Βιωμένες Εμπειρίες απ’ το 1903 έως και το 1957*, εκδ. Πλέθρον, Αθήνα, 2008

Internet Sources :

«*Ηθικοί Πανικοί, Εξουσία και Διακαιώματα. Σύγχρονες Προσεγγίσεις*». Εκδ Σακκούλα, Αθήνα. Ανακτήθηκε στις 5/10/25 από:

[https://www.academia.edu/22751513/A_Critical_Approach_of_Moral_Panics %CE%9A%CF%81%CE%B9%CF%84%CE%B9%CE%BA%CE%AE %CF%80%CF%81%CE%BF%CF%83%CE%AD%CE%B3%CE%B3%CE%B9%CF%83%CE%B7 %CF%84%CF%89%CE%BD %CE%B7%CE%B8%CE%B9%CE%BA%CF%8E%CE%BD %CF%80%CE%B1%CE%BD%CE%B9%CE%BA%CF%8E%CE%BD](https://www.academia.edu/22751513/A_Critical_Approach_of_Moral_Panics_%CE%9A%CF%81%CE%B9%CF%84%CE%B9%CE%BA%CE%AE_%CF%80%CF%81%CE%BF%CF%83%CE%AD%CE%B3%CE%B3%CE%B9%CF%83%CE%B7_%CF%84%CF%89%CE%BD_%CE%B7%CE%B8%CE%B9%CE%BA%CF%8E%CE%BD_%CF%80%CE%B1%CE%BD%CE%B9%CE%BA%CF%8E%CE%BD)

ODIHR (2013). *Preventing and Responding to Hate Crimes: A Resource Guide for NGOs in the OSCE Region*. Warsaw: ODIHR. Ανακτήθηκε στις 2/1/2026 από: <https://www.osce.org/sites/default/files/f/documents/8/a/39821.pdf>

Frothingham, M.B. (2021). *Folk Devils and Moral Panics (Cohen 1972)*. Simply Psychology. Ανακτήθηκε στις 15/1/2026 από: www.simplypsychology.org/folk-devils-and-moral-panics-cohen-1972.html

Jones , C. (2002, n.d. n.d.). Confronting Institutionalized Racism. *Phylon*, σσ. 7-22. Ανάκτηση από <https://www.jstor.org/stable/4149999>

Τσιάμης Γ., (2017), “Σημειώσεις για την Κοινωνική Ταυτότητα και τις Κοινωνικές Αναπαραστάσεις”, Ανακτήθηκε στις 15/1/2026 από:

https://www.academia.edu/35122226/%CE%A3%CE%B7%CE%BC%CE%B5%CE%B9%CF%8E%CF%83%CE%B5%CE%B9%CF%82_%CE%B3%CE%B9%CE%B1_%CF%84%CE%B7%CE%BD_%CE%9A%CE%BF%CE%B9%CE%BD%CF%89%CE%BD%CE%B9%CE%BA%CE%AE_%CE%A4%CE%B1%CF%85%CF%84%CF%8C%CF%84%CE%B7%CF%84%CE%B1_%CE%BA%CE%B1%CE%B9_%CF%84%CE%B9%CF%82_%CE%9A%CE%BF%CE%B9%CE%BD%CF%89%CE%BD%CE%B9%CE%BA%CE%AD%CF%82_%CE%91%CE%BD%CE%B1%CF%80%CE%B1%CF%81%CE%B1%CF%83%CF%84%CE%AC%CF%83%CE%B5%CE%B9%CF%82

European Institute for Gender Equality (EIGE). (2017). «*Secondary victimisation*». Ανακτήθηκε στις 16/1/2026 από: <https://eige.europa.eu/publications/secondary-victimisation>

Infovictims. (χ.χ.). «*Secondary victimisation*». Ανακτήθηκε στις 17/1/2026 από: <https://www.infovictims.gr/gr/%CE%B3%CE%BB%CF%89%CF%83%CF%83%CE%AC%CF%81%CE%B9%CE%BF>

Knowledge Deck. «*Secondary victimization*». Ανακτήθηκε στις 17/1/2026 από: <https://knowledge.deck.no/psychology-and-sociology/criminology/victimology/secondary-victimization>

ROMANET CERV-2024-CHAR-LITI
Project: 101215052

